

**IN THE COURT OF XXXI ADDITIONAL CITY CIVIL AND
SESSIONS JUDGE AT BENGALURU**

Dated this the 8th day of October 2025

PRESENT : **SRI.VEDAMOORTHY B.S.** B.A.(L), LL.B.
XXXI Addl. City Civil & Sessions Judge, Bengaluru. (CCH-14)

Ex.No.2562/2023

DECREE HOLDERS : Sri.H.Jawaharla
Dead by his LR's.

V/s

JUDGMENT DEBTORS : Sri.H.Uday Raj & others.

i.	Provision under which the application is filed	Section 15 of Commercial Courts Act R/w Section 151 of the Code of Civil Procedure.
ii.	Reliefs sought for	To transfer this case to commercial Court.
iii.	The date on which the application is filed	15.02.2025
iv.	Number of the application	I.A.No.II
v.	The date on which the objection is filed	02.07.2025
vi.	The date on which the order was passed on the said application	08.10.2025

ORDERS ON I.A.No.II

The learned Counsel for the decree holders have filed
I.A.No.II under Section 15 of the Commercial Courts Act

R/w Section 151 of the Code of Civil Procedure seeking an order to transfer this case to the Commercial Court at Bengaluru.

2. In support of I.A.No.II, the learned Counsel for the decree holder filed his Memorandum of Facts.

3. The learned Counsel for the Judgment Debtors have filed objections to I.A.No.II praying to dismiss I.A.No.II.

4. Heard the arguments of the learned Counsels for the decree holders and the Judgment Debtors on I.A.No.II. Perused the materials available on record.

5. The following point that has been arisen for my consideration:

Whether the present execution petition is liable to be transferred to the Commercial Court at Bengaluru ? If so, what order?

6. My answer to the above point is in the Negative for the following:

REASONS

7. This Execution Petition is arisen out of the preliminary decree dated 02.03.2023 passed in O.S.No.4706/1998 for render true and proper accounts to the decree holders by judgment debtors No.3 to 5 in respect of Partnership Firm M/s Sangeet Theatre, Sandeep Theatre and Ganesh Theatre till date.

8. In the Memorandum of Facts filed by the learned Counsel for the decree holders it is stated that the dispute in O.S.No.4706/1998 was arisen out of the Partnership Deed dated 01.07.1971. Since every Partnership is based on mutual agency, the said Agreement is also a contract of agency. The businesses engaged in and by the firm are ordinary transactions of merchants and traders. The property of the firm is an immovable property being exclusively used in trade and commerce. The value of the property of the firm and the accounts i.e., the subject value of the dispute is exceeds more than 3 lakhs. Under Section 2 of the Commercial Courts Act, 2015, this disputes satisfies the twin test of being a commercial dispute where

the subject matter of the dispute is above the specified value and it is not attained the stage of final execution. After the decree holders obtain the Books of Accounts, they will initiate the Final Decree Proceedings. Therefore, this Court is empowered to transfer this case at Commercial Court, Bengaluru.

9. The main objection of the learned Counsel for the judgment debtors is that Section 15 of the Commercial Courts Act, 2015 cannot be invoked after the judgment is passed. Since this is an execution proceedings, it cannot be transferred. Since the decree holder and judgment debtor No.1 are dead, this execution petition cannot be continued in view of the judgment of the Hon'ble Supreme Court in the case between S.P.Misra and others V/s Mohamd Laiquddin Khan & another [(2019) 10 SCC 329].

10. The maintainability of the execution petition is not under consideration at present. Therefore, the said objection of the learned Counsel for the judgment debtors cannot be considered at this stage of the proceedings. The

present execution petition is filed to execute a portion of a decree i.e., for render true and proper accounts to the decree holders by judgment debtors No.3 to 5 in respect of Partnership Firm M/s Sangeet Theater, Sandeep Theater and Ganesh Theater till date. Under Section 38 of the Code of Civil Procedure, a decree may be executed either by the Court which passed it, or by the Court to which it is sent for execution. No doubt, this Court passed the decree under execution. This Court has jurisdiction to execute the decree under execution. Under Section 15(2) of the Commercial Courts Act, 2015, all suits and applications, including applications under the Arbitration and Conciliation Act, 1996 relating to a Commercial dispute of a specified value pending in any Civil Court shall be transferred to the Commercial Court. This is not a pending suit or application as contemplated under Section 15 of the Commercial Courts Act. For the above reasons, the present execution petition is not liable to be transferred to the Commercial Court at Bengaluru. Hence, I answer the above

point in the Negative. In the result, I proceed to pass the following :

ORDERS

I.A.No.II filed by the learned Counsel for the decree holders under Section 15 of the Commercial Courts Act R/w Section 151 of the Code of Civil Procedure is hereby dismissed.

No order as to costs.

(Typed by the stenographer in Court Computer on my direct dictation, printout taken, corrected and then pronounced by me in the open court today on this the 8th day of October 2025).

(VEDAMOORTHY B.S.)
XXXI Addl. City Civil & Sessions Judge,
Bengaluru.